

Mr. Jayant S/O. Prafullakumar Bhansali vs Mrs. Sonal W/O. Jayant Bhansali @ Sonal ... on 14 July, 2016

Author: Vasanti A. Naik

Bench: Vasanti A. Naik

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT NAGPUR, NAGPUR.

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FAMILY COURT APPEAL NO. 21/2016
Mr. Jayant s/o Prafullakumar Bhansali

Aged 36 years, Occupation - Business
R/o Bhansali Bhavan, Itwari Bhaji Mandi
Nagpur - 440 002
(Tahsil and District : Nagpur

(Maharashtra State)
v e r s u s

Mrs. Sonal w/o Jayant Bhansali
(@ Sonal D/o Ramesh Shah)
Aged 39 years, occu: Privte,

R/o Darodkar Chowk, 182 South Ring Road
Tukdoji Putla, Nagpur
Tahsil & District Nagpur
(Maharashtra State) ..

.....
Shri H.D.Dangre, Advocate for appellant

Shri Anand Parchure, Advocate for the respondent
.....

CORAM: SMT. VASANTI A. NAIK

MRS . SWAPNA JO

DATED : 14th July, 2016

ORAL JUDGMENT: (PER SMT.VASANTI A. NAIK, J.)

1. The Family Court Appeal is 'admitted' and heard finally, with consent.

2. By this Family Court Appeal, the appellant-husband challenges the order of the Family Court, dated 8th February, 2016, below Exh.1, allowing fca.21.16 an Application filed by the respondent for withdrawal of the consent for passing a decree of divorce under Section 13-B of the Hindu Marriage Act (hereinafter referred to as 'the Act' for the sake of brevity).

3. The appellant (hereinafter referred to as 'the husband' for the sake of convenience) and the respondent (hereinafter referred to as the 'the wife') were married at Nagpur on 7.10.2001 as per the Hindu rites and customs. Two sons were born to the parties from the wedlock, namely, Siddhartha and Dev. Since there was an irretrievable breakdown of the marriage between the husband and the wife, the parties started residing separately and it is the case of the husband that the parties voluntarily and with their free will and consent, filed an Application for grant of decree of divorce by mutual consent, under Section 13-B of the Act. According to the appellant-husband, the parties presented the Petition, under section 13-B of the Act before the Family Court, on 1.7.2015 after the same was prepared and signed by the parties on 13.06.2015. As per the terms in the Application under section 13-B of the Act, Rs. 7 lakh were to be paid by the husband to the wife towards full and final settlement and the said amount was already paid to her on 29.06.2015 through a Cheque bearing No.683644, drawn on the UCO Bank. Siddhartha and Dev were to reside with the husband, as per the consent terms. More than a month after the filing of the Application under Section 13-B, the wife applied for taking the case on Board, on 12.08.2015. It fca.21.16 was stated in the pursis filed by the wife that the consent of the wife for seeking the decree of divorce by mutual consent, was sought under the pressure of the husband and his brother. It was mentioned that the wife was

forcibly brought to the Court. An affidavit reiterating the same facts was also presented by the wife in the Family Court. On 2.11.2015, the wife filed another Application for permission to take the case on Board and to appoint another lawyer. An Application for permission to withdraw the Application under Section 13-B of the Act was also filed. On 11.1.2016, the wife filed an Application for grant of compensation. Thereafter, it appears that a First Information Report was filed against the husband by the wife, under section 498-A of the Penal Code. The husband filed a reply to the aforesaid Application along with the documents. Certain material was placed on record to show that the wife had withdrawn the amount of Rs. 7 lakh that was paid to her vide Cheque No. 683644. An affidavit of Advocate Kadu was filed by the husband on 27.1.2016 to point out that the parties had approached him and after deliberations, the consent terms were prepared and the parties signed the documents before the Notary. The Family Court considered the Application filed by the wife for permission to withdraw the Petition, under Section 13-B of the Act and allowed the same, by the order dated 8th February, 2016. The husband had challenged the said order in this Family Court Appeal.

4. Shri H.D.Dangre, the learned counsel for the appellant-husband fca.21.16 submitted that the Family Court was not justified in permitting the wife to unilaterally withdraw the consent after she had voluntarily signed the consent terms and had presented the Petition in the Family Court, on 1.7.2015. It is stated that a party could be permitted to wriggle out of the consent terms only if it is proved that fraud was practised on the party at the time of filing of the Petition under section 13-B of the Act. It is submitted that a party cannot be permitted to withdraw his/her consent unless it is strictly proved that the consent for filing the Petition under section 13-B of the Act was secured fraudulently or under undue influence or coercion. It is submitted that the wife had acted upon some of the consent terms that were favourable to her and had encashed the cheque for an amount of Rs. 7 lakh, as could be seen from the Bank certificate tendered by the husband in the Family Court. It is stated that the Family Court could not have relied on the case of the wife in the pursis-affidavit filed by her that she was forcibly made to sign on the consent terms and attend the Court. It is stated that the aforesaid facts could have been proved by the wife only after permitting the parties to tender evidence. It is stated that once the wife had acted upon the terms that were favourable to her, she could not have been permitted to back out unless she proved that her consent was sought by practising fraud on her. It is stated that the husband had acted upon the consent terms to his detriment by paying a sum of Rs. 7 lakh to the wife towards the full and final settlement and, in this background, the wife could not have been permitted to withdraw the fca.21.16 Petition under section 13-B of the Act, without proving the facts stated by her in the Application for permission to withdraw the Petition under section 13-B of the Act. It is stated that the wife had changed her stand from time to time after she applied for taking the case on Board, on 12.08.2015. It is stated that whether fraud was actually practised on the wife while securing her consent and/ or whether the amount of Rs. 7 lakh was paid to the wife towards the transaction of the partnership business in which she was one of the parties, as held by the Family Court could not have been proved unless the parties were granted an opportunity to tender evidence.

5. Shri Anand Parchure, the learned counsel for the respondent-wife initially supported the order of the Family Court but after the matter was heard for some time, the learned counsel fairly submitted that the findings in the impugned order dated 8.2.2016 are recorded by the Family Court without

permitting the parties to tender evidence. It is stated that since it is the case of the wife that her consent was not freely granted and she was forced to sign on the Petition for grant of decree of divorce by mutual consent in view of the pressure exerted by the husband and his brother, the wife had rightly applied for permission to withdraw the Petition, jointly filed by the parties under section 13-B of the Act. It is stated that though the amount of Rs.7 lakh appears to have been withdrawn by the wife, as held by the Family Court, the said amount was payable to the wife towards her share in the partnership fca.21.16 business in which she was one of the partners. It is stated that if this Court is to remand the matter to the Family Court for permitting the parties to tender evidence on the respective claims made by them on the Application made by the wife for permission to withdraw the Petition under Section 13-B of the Act, the Family Court may be directed to decide the matter within a time-frame.

6. On hearing the learned counsel for the parties and on a perusal of the original record and proceedings, it appears that the following points arise for determination in this Family Court Appeal :-

(A) Whether the matter is liable to be remanded to the Family Court for permitting the parties to tender evidence, before the wife is permitted to withdraw the Petition under section 13-B of the Act ?

(B) What order ?

7. It is not in dispute that the parties have prepared and signed the Petition under section 13-B of the Act, on 13.06.2015 and both of them together have filed the same in the Family Court, on 1.7.2015. One of the consent terms pertains to the payment of Rs. 7 lakh by the husband to the wife by Cheque No.683644 drawn on the UCO Bank, Nagpur, towards full and final settlement. The said cheque was accepted by the wife and it is the case of the husband that the said cheque was encashed by her as per the fca.21.16 certificate-report of the Bank. The wife had, on 12.08.2015, applied for taking the case on Board and had pleaded that she had given her consent for a decree of divorce by mutual consent under pressure and that she was forcibly brought to the Court at the time of filing of the Petition. Thereafter, the wife changed the counsel from time to time and then filed the Application for withdrawal of the Petition under section 13-B of the Act and also an Application for grant of compensation was made. It is rightly submitted on behalf of the husband that if the wife had acted upon some consent terms that were beneficial to her by accepting Rs. 7 lakh towards the full and final settlement and had withdrawn the said amount, she should not have been permitted by the Family Court to withdraw the Petition, jointly filed by her, under section 13-B of the Act, in view of the judgment of this Court, reported in 2011(4) Mh.L.J. 187: Prakash Kalandri vs. Jahnavi Kalandri. In this Family Court Appeal, we are not deciding whether the wife had received the amount of Rs. 7 lakh towards her share in the business of the partnership firm, as stated by her in one of her Applications and/or whether it was received by her towards permanent alimony, as stated by the husband. It would be necessary for the parties to prove their respective cases in the Family Court by tendering the evidence. The Family Court should not have observed that the wife may have received the amount of Rs. 7 lakh towards her share in the partnership-firm business, without permitting the parties to tender the evidence on the said aspect. Also, the Family Court should not have made any fca.21.16 observation about the likelihood of fraud being practised on the wife, for the reasons stated

in the impugned order without permitting the parties to tender the evidence in that regard. Whether one party has practised fraud on the other, could be decided by the Court only after permitting the parties to tender the evidence. In the instant case, the Family Court, without permitting the parties to tender evidence, erroneously observed in the impugned order that the husband had made the payment of Rs. 7 lakh to the wife towards permanent alimony, does not seem to be believable. The Family Court further observed without permitting the parties to tender evidence that there was something fishy in the transaction, as by the gift deed, dated 18.06.2015, the wife had given up her share in the family business in favour of the husband.

The Family Court further observed without there being any material on record that it was not possible for the wife who had gifted a sum of more than Rs. 50 lakh to the husband, to accept a permanent alimony of Rs.7 lakh after waiving her right to the custody of both her children. Before making all the aforesaid observations, the Family Court ought to have granted permission to the parties to tender the evidence.

8. In the circumstances of the case, it is necessary to remand the matter to the Family Court to decide the Application filed by the wife for permission to withdraw the Petition under section 13-B of the Act, after permitting the parties to tender evidence, both oral as well as documentary.

fca.21.16

9. Hence, for the reasons aforesaid, the Family Court Appeal is partly allowed. The order of the Family Court, dated 8th February, 2016, is hereby set aside. The Family Court is directed to decide the Application of the wife as early as possible, and positively within eight months from the date of appearance of the parties before the Family Court. The parties undertake to appear before the Family Court on 2 nd August, 2016 . The Registry is directed to remit the record and proceedings to the Family Court, at the earliest. Order accordingly. There would be no order as to costs.

JUDGE

JUDGE

sahare

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C E R T I F I C A T E

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